

2:00 PM

LINE 6

25-CIV-09171

ALEJANDRO CARRILLO VS. GENERAL MOTORS LLC

ALEJANDRO CARRILLO
GENERAL MOTORS LLC

CHAD A. DAVID
H, PAUL EFSTRATIS

PLAINTIFF'S MOTION TO DETERMINE THE AMOUNT OF REASONABLE ATTORNEY'S FEES, COSTS AND EXPENSES TO BE PAID BY DEFENDANT

TENTATIVE RULING:

Plaintiff Alejandro Carrillo's Motion to Determine the Amount of Reasonable Attorney's Fees, Costs and Expenses to be Paid by Defendant General Motors LLC ("GM") is GRANTED IN PART.

As a preliminary matter, it appears the memorandum of points and authorities in opposition was intended to be accompanied by a declaration. (See, e.g., Aug. 12, 2026 Memorandum of Points & Authorities, p. 6, ll. 5–7.) However, no such declaration has been filed.

As another preliminary matter, in the memorandum of points and authorities in opposition, GM cites to a trial court opinion—not as evidence of prevailing markets rates or other permissible purposes—but as authority for a legal proposition. Trial court opinions should not be cited and are of no precedential value. (*The Pep Boys Manny Moe & Jack of California v. Old Republic Ins. Co.* (2023) 98 Cal.App.5th 329, 341; see *Bolanos v. Superior Court* (2008) 169 Cal.App.4th 744, 761 [citation to trial court order as legal authority was improper].)

There is no dispute that the claims in this action have predominantly been settled, and the parties have agreed that Plaintiff Alejandro Carrillo and may seek, via this motion as prevailing plaintiff under the Song-Beverly Consumer Warranty Act ("SBCWA"), an award of costs and expenses reasonably incurred in bringing the action. (May 7, 2026 Declaration of Chad A. David ("David Decl."), ¶¶ 4–5, exh. 1.)

A buyer who prevails in an action under the SBCWA is entitled to recover costs and expenses, including attorney fees, reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code, § 1794; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105.) The Legislature has recognized that lawyers who take on Song-Beverly cases that seek to vindicate fundamental public policies will receive reasonable attorney fees. (*Reynolds, supra*, at p. 1111.)

Generally in this county, the parties have been able to negotiate their attorneys' fees in Song-Beverly actions without the necessity of bringing a motion. No agreement, however, was reached in this case. Thus, the Court decides the issue.

Attorney fees in a SBCWA case are awarded based upon the lodestar method. (*Reynolds, supra*, 47 Cal.App.5th at p. 1112.) California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorney fee award. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) “The major factors the trial court must consider in determining an attorneys’ fee award include: the nature of the litigation and its difficulty; the amount of money involved in the litigation; the skill required and employed in handling the litigation; the attention given to the case; the attorney’s success, learning, age and experience in the particular type of work demanded; the intricacy and importance of the litigation; the labor and necessity for skilled legal training and ability in trying the case; and the amount of time spent on the case.” (*Niederer v. Ferreira* (1987) 189 Cal.App.3d 1485, 1508, citing *In re Marriage of Cueva* (1978) 86 Cal.App.3d 290, 296 and *Nevin v. Salk* (1975) 45 Cal.App.3d 331, 343.) “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group, supra*, at p. 1095.)

A. Hours Expended

As to the reasonableness of the time worked, this Court has a responsibility to review the billing records. In *Ketchum v. Moses*, our Supreme Court explained: “In referring to ‘reasonable’ compensation, we indicated that trial courts must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

In *Harman v. City and County of San Francisco* (2006) 136 Cal.App.4th 1279 the court analyzed the considerations relevant to this initial lodestar determination by looking to *Hensley v. Eckerhart* (1983) 461 U.S. 424, in which the court “instruct[ed] that the initial lodestar calculation should exclude ‘hours that were not reasonably expended’ ” and drew an analogy to private billing practices: “ ‘Counsel for the prevailing party should make a good-faith effort to exclude from a fee request hours that are excessive, redundant, or otherwise unnecessary, just as a lawyer in private practice ethically is obligated to exclude such hours from his fee submission. ‘In the private sector, ‘billing judgment’ is an important component in fee setting. It is no less important here. Hours that are not properly billed to one’s client also are not properly billed to one’s adversary pursuant to statutory authority.’ ” (*Harman v. City and County of San Francisco*, at p. 1310, quoting *Hensley v. Eckerhart*, at p. 434.) “Counsel is not entitled to compensation for ... work merely because it was performed. Rather, it is counsel’s burden “to persuade the trial court the work was reasonably necessary, both as to the particular tasks performed and the amount of time devoted to them.” (*Howell v. State Dept. of State Hospitals* (2024) 107 Cal.App.5th 143, 158–159 [quotation marks and citation omitted].)

“[C]ontemporaneous time records are the best evidence of lawyers’ hourly work,” and here Carrillo has provided such records. (*Taylor v. County of Los Angeles* (2020) 50 Cal.App.5th 205, 207; see David Decl., ¶ 13, exh. 7.) These records reflect 22.2 hours worked by attorney Chad David and 11.2 hours worked by paralegals Lisa Tyler, Andrew Zazzi, and Inigo Gatus in the

commencement, prosecution, and settlement of this matter, as well as the instant fee motion. (*Ibid.*)

GM takes issue with four categories of time entries in these records, arguing that the time spent on the tasks described was either duplicative or excessive and that time for certain tasks be entirely excluded. The first category is 3.8, 1.1, and 2 hours billed for drafting the complaint, the initial disclosures, and the mediation brief, respectively. (See David Decl., exh. 7.) GM argues that the papers were created from templates, such that the time spent on them was unreasonably long. However, the time appears entirely reasonable. Even when using templates, an attorney is required review the drafted paper with care and ensure the accuracy of case-specific facts and law.

The second category is the time billed in 0.2-hour increments by non-attorney staff. (See David Decl., exh. 7.) As Carrillo points out, most of the entries to which GM object were already excluded from the calculation of Carrillo's request. Nonetheless, there are a number of 0.2 hour entries that should not have taken more than twelve minutes, and the court finds that these the reasonable time for these tasks is 0.1 rather than 0.2 hours and reduces the paralegal time accordingly.

The third category is the 6.1 hours preparing and making the instant fee motion. (See David Decl., exh. 7.) There is no dispute that fees may be awarded for a fee motion. Instead, GM contends that, because Carrillo refused to provide detailed billing records during settlement negotiations, the fees for the motion should be disallowed. The Court should not attempt to direct the manners, tactics, or strategies in which or with which litigants negotiate settlement in this manner—there is no legal requirement that a plaintiff settle an award of fees, much less disclose certain information to do so. The Court finds the 6.1 hours reasonable incurred, but the hourly rate of \$795 per hour too high. The Court finds the reasonable hourly rate to be \$350.00 per hour.

The fourth category is the 5.0 hours of time anticipated to be spent as of May 22, 2026, when the declaration in support of the motion was made. (See David Decl., ¶ 19.) The SBCWA only provides for “cost and expenses ... reasonably incurred,” and attorney fees “based on actual time expended.” (Civ. Code, § 1794, subd. (d).) Speculative fees for future tasks that may or may not come to be incurred and based on time that may or may not come to be expended by an attorney do not fall within the statute. In response to this objection, Carrillo only cites to authority for the proposition that fees incurred in bringing the fee motion and none for the proposition that an award of fees incurred may be based on evidence predicting what fees will be incurred. If GM contests the tentative ruling, the Court will grant an additional fee request for the time spent preparing for and attending the hearing.

The Court finds the remainder of the claimed time to have been reasonably incurred.

B. Hourly Rates

As to the hourly rate, the reasonable hourly rate is the reasonable hourly rate for San Mateo County, the venue of this case. “ ‘The reasonable hourly rate is that prevailing in the community for similar work.’ ” (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler*, *supra*, 22 Cal.4th at p. 1095].) This court may use its own experience to determine the value of attorneys’ fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 [“The value of attorney’s services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”]; *Reynolds*, *supra*, 47 Cal.App.5th at pp. 1113-14 [“The trial court acted well within its discretion in using ‘the prevailing market value in the community for similar legal services’ relying on its personal knowledge and familiarity with the area legal services, as the ‘touchstone’ for determination” of the reasonable hourly rates.”] (citations omitted)].) This Court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys’ fees and costs frequently during her time as a judicial officer. The Laffey matrix is another resource to determine a reasonable hourly rate. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 702 [court can use Laffey Matrix for reasonable hourly rate].)

Here, Carrillo has provided evidence in the form of the declaration of his counsel and approved rates for similar work supporting the hourly rates he claims for his attorney and the attorney’s staff. (David Decl., ¶¶ 7–11, 17 exhs. 1–6.) GM objects to the fact that the referenced examples of approved rates were in different counties. As Carrillo correctly observes, the prevailing rates in San Mateo County are in fact higher than some of those counties. The Court finds that \$795.00 is a reasonable rate for David except for the work for preparing the fee motion, which hourly rate the court has reduced to \$350.00 per hour as set forth above. The Court finds \$250.00 per hour for the paralegals is reasonable.

GM also objects to the rates on the basis that this was a relatively simple case under the SBCWA that involved no trial or formal discovery. However, GM provides no evidence that the prevailing rate for such a case is lower in the community. GM argues that the rates should be discounted a la hospital bills, citing *Howell v. Hamilton Meats & Provisions, Inc.* (2011) 52 Cal.4th 541, 561–562, but the point of fee-shifting under the SBCWA is to incentivize and compensate attorneys for the opportunity cost of forgoing lucrative work in other practice areas. That is, a rate is not unreasonable simply because it was incurred on a contingency basis and will never be paid in full by the plaintiff.

C. Conclusion

The Court grants and denies the request as set forth above. In preparing the formal order, Carrillo shall include a full calculation of the lodestar (i.e., setting forth the hours of attorney work and

hours of paralegal work with the above deductions having been performed and laying out the arithmetic to reach a single dollar sum).

The Court also awards costs in the amount of \$812.53, which are reasonable and not disputed. (See Civ. Code, § 1794, subd. (d) [prevailing party may recover all reasonably incurred costs].)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Plaintiff shall prepare, for the court's signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 7

26-CIV-03316

MALCOLM DURHAM VS. DIANA C. GUADALUPE CHIPANA, ET AL.

MALCOLM DURHAM

PRO SE

DIANA C. GUADALUPE CHIPANA

PRO SE

MOTION TO STAY DISCOVERY PENDING HEARING ON DEMURRER

TENTATIVE RULING:

For the reasons stated below, Defendant Diana Guadalupe Chipana's dba Wealth Recovery Solutions ("Defendant") "Motion to Stay Discovery Pending Hearing on Demurrer," filed July 17, 2026, is DENIED.

Background. Plaintiff filed this case on April 29, 2026. The Complaint seeks (1) to set aside a default judgment entered against Plaintiff in a prior lawsuit in the Santa Clara County Superior Court; (2) to set aside all charging orders against Plaintiff's interest in Vida Capital Group, LLC; (3) "dismissal" of the underlying lawsuit filed in the Santa Clara County Superior Court; (4) a finding that Defendant has violated Calif. Bus. & Prof. Code § 17200; and (5) damages for "abuse of legal process." Defendant Chipana has filed a demurrer to Plaintiff's Complaint, arguing that all of Plaintiff's asserted claims are barred as a matter of law. The demurrer hearing is set for September 22, 2026 (less than one month from now).

According to Defendant's moving papers, on June 16, 2026, Plaintiff served three sets of written discovery on Defendant: (1) Form Interrogatories (Set One); (2) Requests for Production of Documents ("RFPs") (Set One), and (3) Requests for Admission ("RFAs"). According to the motion, Defendant's responses to the foregoing discovery requests was due on July 21, 2026 (about one month ago).

Defendant's motion argues that the Court is likely to sustain Defendant's demurrer to all asserted claims, and therefore, that good cause exists to relieve Defendant of the expense/burden of responding to Plaintiff's form interrogatories and RFPs, and the burden of producing responsive documents, until thirty (30) days after service of notice of entry of the Court's ruling on Defendant's demurrer. The motion asks for two alternative forms of relief, but they are essentially the same request, worded slightly differently. (See Notice of Motion.)

Application. The motion is denied. Defendant asks the Court to deviate from the normal rules governing discovery. As a general rule, the filing of a demurrer does not stay discovery. Code of Civil Procedure sections 2030.020, subdivision (b) and 2031.020, subdivision (b) provide that a plaintiff may propound interrogatories and requests for production of documents to a defendant ten (10) days after service of the summons on, or appearance by, the defendant. Discovery normally proceeds, regardless of whether the pleadings are at issue. Defendant's motion essentially asks the Court to predict the outcome of the demurrer, and to suspend Plaintiff's
